

18. 9:00 AM CASE NUMBER: N25-1896

CASE NAME: CLAIM OF: JERRY BURNS, JR.

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Petitioner Jerry Burns Sr ("Plaintiff") filed a Petition for Approval of Compromise on or about September 25, 2025 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on February 9, 2026.

Analysis

The Minor's Compromise is unopposed.* The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

*Although no proof of service appears of record, it appears that no prior notice to other parties is mandatory. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 5.45 (observing that neither the Code of Civil Procedure nor the CRC contemplate a noticed motion for approval of a minor's compromise and concluding that a judge "may decide a petition to approve or disapprove a minor's compromise on an ex parte basis, in chambers"). In any event, no party has sought to appear to oppose the Minor's Compromise.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.
2. The Court shall enter the proposed form of orders lodged with the moving papers.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C23-01137

CASE NAME: BRAYAN RUBIO VS. HATEM AHMED

***HEARING ON MOTION FOR DISCOVERY COMPEL ATTENDANCE AND TESTIMONY OF PLAINTIFF
CLAUDIA RUBIO AT DEPOSITION AND PRODUCTION OF RECORDS**

FILED BY: USEN, IME I

TENTATIVE RULING:

Pursuant to the Notice of Withdrawal filed February 5, 2026 by defendant IME I. USEN ("Defendant"), the Motion to Compel Attendance and Testimony filed September 19, 2025 and scheduled for hearing on February 23, 2026 is DROPPED from calendar and the hearing date VACATED.

20. 9:01 AM CASE NUMBER: C23-00655
CASE NAME: MICHAEL ROLANDELLI VS. CSAA INSURANCE EXCHANGE
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DEPOSITION AND DOCUMENTS OF
CSAA CLAIMS MANAGERS ZACHARY GORDON AND JENNIFER WOLF
FILED BY: ROLANDELLI, MICHAEL
TENTATIVE RULING:

Plaintiff Michael Rolandelli ("Plaintiff") filed a Motion to Compel Further Deposition and Documents on September 30, 2025 (the "Motion to Compel"). The Motion to Compel was set for hearing on February 9, 2026. The motion is opposed.

Background

Plaintiff noticed the deposition of Zachary Gordon, the "National Homeowners Claims Executive" with defendant CSAA Insurance Exchange ("CSAA"). See Declaration of Nicholas J. Peterson filed September 30, 2026 ("Peterson Decl."), ¶3. Mr. Gordon appeared for his deposition and was examined on August 29, 2025. *Id.* at ¶15.

Plaintiff noticed the deposition of Jennifer Wolf, CSAA's "Claims Manager." *Id.* at ¶17. Ms. Wolf appeared for her deposition and was examined on September 4, 2025. *Id.* at ¶10.

The deposition notices served as to both witnesses contained document production requests. Plaintiff contends that both witnesses "admitted to failing to search or produce any documents for the majority of the requests." See Memorandum of Points and Authorities filed September 30, 2025 ("Plaintiff's MPA"), p. 5. Plaintiff seeks an order compelling production of the requested documents and an order for a further deposition of the witnesses.

An *ex parte* application to advance the hearing date on the Motion to Compel was brought and denied by the Court. See Order entered October 29, 2025.

Analysis

The Court need not address the merits of the Motion to Compel because the motion is untimely.

The deadline for the hearing of discovery motions (the "Discovery Motion Hearing Cutoff Date") is "on or before the 15th day, before the date initially set for the trial of the action." Code Civ. Proc. § 2024.020(a).

The pending motion was not heard on or before the Discovery Motion Hearing Cutoff Date. The initial trial setting was December 8, 2025. See Minute Order entered April 10, 2025. The 15th day before December 8, 2025 was Sunday, November 23, 2025. By operation of law, the Discovery Motion Hearing Cutoff Date would have extended to Monday, November 24, 2025. Code Civ. Proc. § 2016.060.

All motions concerning discovery under the Discovery Act must be heard on or before the statutory cutoff, irrespective of any continuance or postponements of the trial date unless an exception applies. See CJER, *California Judges Benchbook: Civil Proceedings—Discovery* (2025) ("CJER Civ. Pro.—Discovery"), § 8.6. Although a court has discretion to hear a discovery motion after the cutoff date, the exercise of that discretion is governed by Code of Civil Procedure section 2024.050. See *Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc.* (2008) 165 Cal.App.4th 1568; see also CJER